

TRIAL AND ERROR

The Noida police mishandled a sensitive case, destroying evidence, trampling upon the crime scene and slandering a young girl in her death. Can the CBI repair the damage?

The Central Bureau of Investigation (CBI) claims to know the killers of Aarushi; that is why Dr Rajesh Talwar is out of jail. The flip side of this is that the Noida police falsely implicated Talwar in killing his only child and domestic help Hemraj and was made to languish in jail for 50 days. It is a mistake as sinister as it is negligent.

It took CBI 40 days to investigate what they called a "grave and blind case" to arrive at this conclusion. Joint Director of CBI Arun Kumar, who headed the Nithari probe, ironically at a distance of just 500 m from the Talwars' home, said at a press conference that the Noida police "had no evidence against Talwar at the time of his arrest", which paved the way for his release. The agency pointed out that the site of the crime had been trampled upon and the evidence interfered with. The Noida police did not cordon off the site of the crime. Fingerprints were not taken, blood samples were not collected. Sniffer dogs were not used—the Noida police apparently has to rent these and does so only at the behest of the family of the victim. A hasty post-mortem was performed. The police could not find Hemraj's body on the terrace—it was discovered only a day later by retired police officer K.K. Gautam. The time of death could not be established without doubt. Why all this was allowed by the Noida police remains a mystery. Was it by accident or by design?

The police suspected the involvement of insiders. Gurdarshan Singh, the inspector general of police, Meerut range, reconstructed the events in a melodramatic fashion. When the CBI took over the investigations on June 1 in the absence of any



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FATAL MISTAKE: The terrace of Talwars' flat from where Hemraj's decomposed body was recovered

reliable lead, they were forced to take a circuitous route. First, the agency took Talwar's laptop and Aarushi's personal computer in to its custody for examination, primarily to retrieve the data recently deleted. A host of other people including the Durrans as well as Noida police officials were grilled by the agency. At one point, CBI sources created an impression that Nupur could also be arrested because her statements contradicted those made by her husband. The allegations of 'wife swapping' made by the Noida police were projected as a factor behind the murders. The CBI also questioned some people alleged to be involved, but nothing came out of it.

A series of forensic tests was conducted on the Talwars, Krishna, Rajkumar, the domestic help of the Durrans, and Mandal, a help employed by Talwar's neighbour, a software engineer, Puneet Rai Tandon. Talwar and Nupur underwent two polygraph tests and a psycho analysis test each. While Krishna, Rajkumar and Mandal had to undergo brain mapping and a narco analysis test in addition to the polygraph test, the CBI is yet to explain why it did not make Talwar and Nupur undergo similar tests.

This case is not an ordinary one. "It has had a serious impact on the social fabric. It has the potential of altering forever the trust between a father and his daughter," explains Arun Kumar. And for the same reason, those who are responsible for botching up the case should be taken to task. The buzz is that the CBI will be filing a chargesheet by mid-August, which will clear the picture. For now, though, the case is still open and the hunt for corroborative evidence is only going to intensify.

by Mihir Srivastava



THE THREE ACCUSED

KRISHNA THAPA, 24, worked as a compounder at Talwar's dental clinic for the last three years.



RAJKUMAR, 18, worked with the Durrans at their home. He had been with them since 2006.



VIJAY MANDAL, 24, was a domestic help employed by Talwar's neighbour, Puneet Rai Tandon, for about a year.